



KTU NOTES

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(c) All local authorities that is, municipalities, panchayats, district boards etc.

(d) All other authorities, that is, statutory or non-statutory authorities.

Thus, State has been defined in a wider sense so as to include all its agencies and these agencies that can be challenged in the courts as violating the rights. According to the Supreme Court, even a private body or an agency working on behalf of the State falls within the meaning of the 'State' under Article 12.

Fundamental Rights

Fundamental Rights - Articles 12 - 35 (Part III of Indian Constitution)

Fundamental rights are the basic human rights enshrined in the Constitution which are guaranteed to all citizens. They are applied without discrimination on the basis of religion, gender, etc. Significantly, fundamental rights are enforceable by the courts under certain conditions.

Why are they called Fundamental Rights?

These rights are called fundamental rights because of two reasons:

1. They are enshrined in the Constitution which guarantees them.
2. They are justiciable (enforceable by courts). In case of a violation, they can be enforced by a court of law.

1. **Right to Equality (Article 14, 15, 16, 17 and 18):**

Equality Before Law: Article 14 says that no person shall be denied equality before the law or the equal protection of the laws within the territory of India.

The right is extended to all persons whether citizens or foreigners, companies, registered societies or any other type of legal person.

Prohibition of Discrimination: Article 15 provides that no citizen shall be discriminated on any grounds only of religion, race, caste, sex or place of birth.

Exception: Certain provisions can be made for the women, children, citizens belonging to socially or educationally backward class for their upliftment (such as reservation in education).

Equality of Opportunity in Public Employment: Article 16 of the Indian Constitution provides for equality of opportunity for all citizens in matters of employment or appointment to any office.

Exceptions: There are provisions for reservation in appointments or offices for any class that is not adequately represented in the state services.

Also, an incumbent of a religious or denominational institution may not be removed on the ground of religion or denomination.

Abolition of Untouchability: Article 17 abolishes 'untouchability' in any form. The enforcement of any disability arising out of untouchability is made punishable in accordance with law.

A person convicted of the offence of 'untouchability' is disqualified from being elected to the Parliament or state legislature. **The acts of offences include:**

- A foreigner holding any office of profit or trust under the state from any foreign state without the consent of the President of India.
- No citizen or foreigner holding any office of profit or trust with the state can accept any present, emolument or office from or under any foreign state without the consent of the president.

2. Right to Freedom (Article 19, 20, 21 and 22):

Protection of 6 Rights: Article 19 guarantees to all citizens the six rights.

Right to freedom of speech and expression.

Expressing one's own views, opinions, belief and convictions freely by writing, printing, picturing or in any other manner.

Right to assemble peaceably and without arms.

Includes the right to hold public meetings, demonstrations and take out processions. This right is exercised only on public land.

It does not protect violent, disorderly and riotous assemblies or strike.

Right to form associations or unions or co-operative societies.

It includes the right to form (and not to form) political parties, co-operative societies, clubs, organisations, trade unions or any body of persons.

Right to move freely throughout the territory of India.

The freedom of movement has two dimensions, viz, internal (right to move freely throughout the territory of India (article 19) and external (right to move out of the country and right to come back (article 21).

No person shall be convicted of any offence except for violation of a law in respect of the commission of the act or subjected to a penalty greater than that prescribed in the law for the commission of the offence.

No person shall be prosecuted and punished for the same offence more than once.

No person accused of any offence shall be compelled to be a witness against himself.

Protection of Life and Personal Liberty: Article 21 declares that no person shall be deprived of his life or personal liberty except according to procedure established by law. This right is available to both citizens and non-citizens.

The right to life is not merely confined to animal existence or survival but it includes the right to live with human dignity and all those aspects of life which go into making a life meaningful, complete and worth living.

Right to Education: Article 21 (A) declares that the State shall provide free and compulsory education to all children of the age of six to fourteen years.

This provision makes only elementary education a Fundamental Right. It does not include professional education.

This provision was added by the **86th Constitutional Amendment Act of 2002**.

Before the 86th amendment, the Constitution contained a provision for free and compulsory education for children under Article 45 in Part IV of the constitution.

Protection Against Arrest and Detention: Article 22 grants protection against arrest and detention of a person who is not arrested or detained.

Detention is of two types, namely, **punitive** (punishment after trial and conviction) and **preventive** (punishment without trial and conviction).

The detenu should be afforded an opportunity to make a representative order.

3. Right Against Exploitation (Article 23 and 24)

Prohibition of Human Trafficking and Forced Labour: Forced labour by landlords, moneylenders and other wealthy persons in the past.

- The **Article 23** of the Indian Constitution prohibits human trafficking (labour without payment) to protect the millions of underprivileged of the country.
- The right is available to **citizens** of India as well as to **non-citizens**.
- The right provides against human trafficking in the form of:
 - Selling and buying of men, women and children.
 - Prostitution
 - Devadasis
 - Slavery.

The **Immoral Traffic (Prevention) Act 13, 1956** has been enacted to de fundamental right.

Prohibition of Child Labour: Article 24 of the Indian Constitution children below the age of 14 years in dangerous jobs like factories and m

However, it did not prohibit their employment in any harmless or innoc

The **Child Labour (Prohibition and Regulation) Act, 1986** (renamed **Labour** (Prohibition and Regulation) Act, 1986 in 2016) specifically de related to this right.

Right to Profess: One can declare his/her religious beliefs and faith openly.

Right to Practice: Performance of religious worship, rituals, ceremonies, etc. in accordance with religious beliefs and ideas.

Right to Propagate: Persuading people to convert from one religion to another. The Constitution does not allow forcible conversions.

It only gives us the right to spread information about our religion and thus to persuade others.

Limitations: The government can impose restrictions on the practice of religion in order to protect public order, morality and health.

The government can interfere in religious matters for rooting out superstitions. For example: banning practices like sati, bigamy or human sacrifice.

Such restrictions cannot be opposed in the name of interference in religious freedom.

Freedom to Manage Religious Affairs: The Article 26 of the Indian Constitution grants to every religious denomination (or any section of it) the **right to establish and maintain institutions for religious and charitable purposes.**

It also empowers the religious denominations to manage their own affairs.

Moreover, the right to own and acquire movable and immovable property and to administer such property is also provided to every religious denomination.

The rights provided under Article 26 are also **subjected to public order, morality and health.**

Freedom from Taxation for Promotion of a Religion:

Freedom from Attending Religious Instruction: Article 28 states that shall be provided in any educational institution wholly maintained out of (India) funds.

However, the provision is not applicable to educational institutions administered or established under any endowment or trust.

Moreover, no person is required to attend any religious instructions without the consent in any educational institution recognised by the State or receiving government aid.

In case of a minor, the consent of his guardian is needed.

5. Cultural and Educational Rights (Article 29 and 30)

Protection of Interests of Minorities: Article 29 provides that every section in any part of the country have the right to protect and conserve its own language or culture (it provides the right to a group/section/community of people).

Further, it says that **no citizen shall be denied admission into any educational grounds only of religion, race, caste, or language** (it provides the right to every citizen).

Article 29 grants protection to both religious, linguistic as well as cultural minorities.

However, the rights are **not necessarily restricted to minorities only**, as is commonly assumed to be. It includes minorities as well as the majority.

Right of Minorities to Establish and Administer Educational Institutions: Under all the minorities the following rights:

The right to establish and administer educational institutions of their choice.

no person shall be deprived of his property except by authority of law

However, being one the most controversial rights, the **44th Amendment** the right to property as a Fundamental Right and made it a legal right (co **Article 300A in Part XII** of the Constitution.

6. Right to Constitutional Remedies (Article 32)

Article 32 is considered the most important article of the Constitution **right to get Fundamental Rights protected is itself a fundamental right**

It confers the **right to remedies for the enforcement of the fundamental rights** of aggrieved citizen.

The Supreme Court has ruled that Article 32 is a basic feature of the Constitution **cannot be abridged or taken away even by way of an amendment** to the Constitution.

It contains the following four provisions:

The right to move the Supreme Court by appropriate proceedings for the enforcement of the Fundamental Rights.

The Supreme Court shall have power to issue directions or orders or **writs** in the nature of any of the fundamental rights.

- Parliament can empower any other court to issue directions, orders or writs in the nature of Habeas Corpus ,Mandamus ,Quo Warranto ,Certiorari ,Prohibition

Habeas Corpus

‘Quo Warranto’ means ‘by what warrant’. Through this writ, a person holding a public office to show under what authority he holds it. If that the person is not entitled to hold that office, he may be ousted from it. To prevent a person from holding an office he is not entitled to, therefore prevent any public office. It cannot be issued with respect to a private office.

Certiorari

‘Certiorari’ means to ‘certify’. Certiorari is a curative writ. When the Court of a lower court or a tribunal has passed an order which is beyond its powers of law then, through the writ of certiorari, it may transfer the case to a higher court passed by the lower court or tribunal.

Any other court here does not include high courts because (Article 226) these powers on the high courts.

The right to move the Supreme Court shall not be suspended except as otherwise provided by the Constitution.

In the case of national emergency, the right can be suspended by the President.

Only the Fundamental Rights guaranteed by the Constitution can be enforced and not any other right like non-fundamental constitutional rights, statutory rights etc.

The violation of a fundamental right is the *sine qua non* (absolutely necessary) for the exercise of the right conferred by Article 32.

Directive Principles of State Policy (DPSP).

Articles 36-51 under Part-IV of Indian Constitution deal with Directive Principles. They are borrowed from the Constitution of Ireland, which had copied it from the

The Sapru Committee in 1945 suggested two categories of individual rights: justiciable and the other being non-justiciable rights. The justiciable rights are Fundamental rights, whereas the non-justiciable ones are the Directive Principles.

DPSP are ideals which are meant to be kept in mind by the state when it enacts laws. There are various definitions to Directive Principles of State Policy.

- They are an 'instrument of instructions' which are enumerated in the Directive Principles of State Policy Act, 1935.
- They seek to establish economic and social democracy in the country.
- DPSPs are ideals which are not legally enforceable by the courts.

Directive Principles of State Policy – Classification

Indian Constitution has not originally classified DPSPs but on the basis of their nature and direction, they are usually classified into three types-

- **Socialistic Principles,**
- **Gandhian Principles and,**
- **Liberal-Intellectual Principles.**

- Right to adequate means of livelihood for all citizens
- Equitable distribution of material resources of the community
- Prevention of concentration of wealth and means of production
- Equal pay for equal work for men and women
- Preservation of the health and strength of workers and children
- Opportunities for the healthy development of children

Article 39A

Promote equal justice and free legal aid to the poor

Article 41

In cases of unemployment, old age, sickness and disablement, secure c

- Right to work
- Right to education
- Right to public assistance,

Article 42

Make provision for just and humane conditions of work and maternity

Article 43

Secure a living wage, a decent standard of living and social and cultural workers

Article 43A

Take steps to secure the participation of workers in the management of

Article 47

Article 43

Promote cottage industries on an individual or co-operation basis in rural areas

Article 43B

Promote voluntary formation, autonomous functioning, democratic control and management of co-operative societies

Article 46

Promote the educational and economic interests of SCs, STs, and other weaker sections of society and to protect them from social injustice and exploitation

Article 47

Prohibit the consumption of intoxicating drinks and drugs which are injurious to health

Article 48

Prohibit the slaughter of cows, calves and other milch and draught cattle and breeds

DPSP – Liberal-Intellectual Principles

Definition:

These principles reflect the ideology of liberalism. Under various articles of the Constitution, the State is directed to secure for all citizens

Article 44

Secure for all citizens a [uniform civil code](#) throughout the country

Article 45

- Promote international peace and security and maintain just and honourable relations between nations
- Foster respect for international law and treaty obligations
- Encourage settlement of international disputes by arbitration

42nd Amendment Act, 1976 added four new Directive Principles in the list

Article 39

To secure opportunities for the healthy development of children

Article 39A

To promote equal justice and to provide free legal aid to the poor

Article 43A

To take steps to secure the participation of workers in the management of enterprises

Article 48A

To protect and improve the environment and to safeguard forests and wildlife

. The Fundamental Duties

